

24SMCV04982 24SMCV04982

County: los-angeles

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Case Number: 24SMCV04982 Hearing Date: August 4, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 200

ERIN BRENNAN,

Plaintiff,

v.

G-B INVESTMENTS, et al.,

Defendants.

Case No.: 24SMCV04982

Hearing Date: August 4, 2026

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION FOR

LEAVE TO FILE SECOND AMENDED

COMPLAINT

BACKGROUND

This case arises from a landlord tenant dispute. Plaintiff Erin Brennan was a tenant of an apartment located at 209 N. Venice Blvd., Unit 9, Venice, CA 90291. Plaintiff entered into a written Lease Agreement ("Lease") with Defendant G-B Investments.

After Plaintiff moved in, the ceiling of the Apartment collapsed due to a water leak from a water heater. An authorized representative of Defendant confirmed that the water heater was broken, and poked holes in the ceiling in an attempt to "air out" the area of the water intrusion. Building materials, insulation and water continued to fall into the Apartment, and the leak continued for one or more days until all the water in the building was turned off.

A month later, Plaintiff began to experience a number of medical issues including, among other issues, nausea, exhaustion, headaches, and mucus accumulation. Additionally, Plaintiff's medical issues related to her pre-existing genetic disorder became worse. Plaintiff was not initially aware that mold in the Apartment was the cause of her medical issues, but after several months, she complained to Defendant about mold in the Apartment and Defendant promised to "send someone out." However, Defendant later stated that its "mold assessment" did not warrant mold testing and that there is no mold and "no water in the walls."

Plaintiff then hired a company to test the Apartment for mold which found unsafe levels of mold. Consequently, Plaintiff permanently vacated the Apartment on or around February 1, 2023.

Plaintiff filed her original complaint on October 11, 2024, and the first amended complaint ("FAC") was filed on July 2, 2025 with leave from the Court. The operative FAC alleges claims for breach of contract, contractual and tortious breach of the warranty of habitability, breach of the covenant of quiet enjoyment, negligence, unfair competition in violation of Bus. & Prof. Code section 17200, and violation of Los Angeles Municipal Code section 45.33.

This hearing is on Plaintiff's motion for leave to file a second amended complaint. Plaintiff seeks to add a claim for constructive eviction, to extend the prayer for exemplary damages to the constructive eviction and violation of LAMC, and add an allegation in the breach of contract claim that "Defendants materially breached the Lease by failing to ensure and maintain the Apartment in habitable condition during the period from May 2022 to February 2023, and failing to timely remediate substandard conditions which Plaintiff alerted Defendant to needing repair." Plaintiff claims that counsel intended to include these allegations in the FAC but inadvertently failed to do so and did not discover the omission until April 2026, after which Plaintiff sought to secure a stipulation from Defendant but when Defendant did not agree to stipulate, Plaintiff promptly filed a motion for leave to amend in May 2026. There was no opposition filed as of the posting of this tentative ruling.

LEGAL STANDARD

Under California Rules of Court Rule, Rule 3.1324, subdivision (a), a motion to amend a pleading shall:

- (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and
- (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

In addition, under California Rules of Court, Rule 3.1324, subdivision (b), a separate declaration must accompany the motion and must specify:

- (1) the effect of the amendment;
- (2) why the amendment is necessary and proper;
- (3) when the facts giving rise to the amended allegations were discovered; and
- (4) the reasons why the request for amendment was not made earlier.

The Court's discretion to grant leave "should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) Ordinarily, the Court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. The Court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See California Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390).)

DISCUSSION

The Court denied Plaintiff's earlier motion for leave to amend because it was procedurally defective. Plaintiff has now cured the deficiencies by stating the specific allegations that are sought to be added and by submitting a declaration that contains the information required by California Rules of Court, Rule 3.1324, subdivision (b). Further, Defendant has not opposed the motion to amend, and given the liberal policy favoring amendments and Defendant's failure to show prejudice, the Court grants Plaintiff's motion to amend.

CONCLUSION AND ORDER

Based on the foregoing, the Court GRANTS Plaintiff's motion for leave to file the second amended complaint.

IT IS SO ORDERED.

DATED: August 4, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court